

26STCV01760 26STCV01760

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Case Number: 26STCV01760 Hearing Date: September 17, 2026 Dept: 514

Brand v. BMW of North America, LLC

26STCV01760

Defendant's Motion for Judgment on the Pleadings

Tentative Ruling

The motion is denied.

Background

This case arises out of a lease of a 2025 BMW iX (the "Vehicle")
by Plaintiff Gary Brand ("Plaintiff")

On January 16, 2026, Plaintiff filed the complaint in
this action against BMW of North America, LLC ("Defendant") and Does 1
through 10 for (1) breach of express warranty obligations, (2) breach of implied
warranty obligations, (3) failure to repair in a good and workmanlike manner,
and (4) failure to repair within thirty days.

On March 12, 2026, Defendant filed an answer.

On June 25, 2026, Defendant filed this motion for
judgment on the pleadings. Plaintiff
filed an opposition on August 21, and Defendant filed a reply on August 27.

The motion was set for hearing on September 3. On September 3, the Court continued the hearing.

Trial is set for May 22, 2028.

Legal Standard

California practice recognizes two types of motions for judgment on the pleadings. First, there is a statutory motion. (See Code Civ. Proc., § 438.) A plaintiff may bring a statutory motion for judgment on the pleadings when “the complaint states facts sufficient to constitute a cause of action ... and the answer does not state facts sufficient to constitute a defense to the complaint.” (Id., subd. (c)(1)(A).) A statutory motion for judgment on the pleadings must be filed within certain time limits, and it is subject to a statutory meet-and-confer requirement. (Id., subd. (e); Code Civ. Proc., § 439.) The grounds for a statutory motion for judgment on the pleadings must “appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 438, subd. (d).)

Second, there is a nonstatutory motion for judgment on the pleadings, which “may be made at any time either prior to the trial or at the trial itself.” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877; see also Smiley v. Citibank (South Dakota) 11 Cal.4th 138, 145 fn. 2; Tarin v. Lind (2020) 47 Cal.App.5th 395, 402; Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

A motion for judgment on the pleadings is the functional equivalent of a demurrer. (People ex rel. Harris v. Pac Anchor Transp. (2014) 59 Cal.4th 772, 77; City of Rancho Palos Verdes v. State (2025) 114 Cal.App.5th 13, 23.) “The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322; accord Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 494; Templo v. State (2018) 24 Cal.App.5th 730, 735; Southern California Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2025] ¶ 7:275.)

Request for Judicial Notice and
Evidentiary Objections

Defendant asks the Court to take judicial notice of Defendant's Statement of Information filed with the State of California, Office of the Secretary of State, dated November 11, 2024. The Court takes judicial notice of the filing of the document but not of the truth of the matters asserted within the document.

Discussion

Defendant moves for judgment on the pleadings on each of the four causes of action in the complaint.

First, Second and Fourth Causes of Action

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Failure to Allege the Vehicle was Purchased in California

The first four causes of action in the complaint all arise under the Song-Beverly Consumer Warranty Act, Civil Code sections 1790 through 1795.8 (the "Act"). The provisions of the Act generally apply only to the sale of "consumer goods" in the State of California. Defendant moves for judgment on the pleadings on these four causes of action on the ground that Plaintiff fails to allege in the Complaint that the sale occurred in California. (Mem., at p. 6.)

In the Complaint, Plaintiff alleges that Defendant is in the business of (among other things) manufacturing, distributing, and selling automobiles in Los Angeles County and in the State of California; and that "[o]n or about August 6, 2024, Plaintiff entered into a lease with Defendant regarding a 2025 BMW iX, vehicle identification number WB523CF03SCT07779 (hereafter "Vehicle"), which was manufactured by Defendant." (Compl., ¶¶ 1, 4, 7.) Liberally construing the complaint, and drawing all reasonable inferences in favor of the pleading, the Court determines that Plaintiff has sufficiently alleged, at the pleading stage, that he purchased the Vehicle, a consumer good, in the State of California.

If the facts are to the contrary, Defendant may raise this issue by motion for summary adjudication or at trial.

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Failure to Allege Terms of Express Warranty as to the First Cause of Action

Next, Defendant contends that the First Cause of Action for breach of express warranty fails because he did not attach the exact terms of the express warranty. (Mem. at p.6, citing *Harris v. Rudin*, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In opposition, Plaintiff contends that Harris relates to pleading a breach of contract claim, and that the pleading standard under Song-Beverly allows to show that the cause of action arises under the language of the statute, which Plaintiff has pled.

Reviewing the Complaint, Plaintiff alleges that there was a warranty offered by Defendant for the Vehicle, that Defendant breached this warranty by “failing to perform the proper repairs, parts replacements, and/or adjustments” to the Vehicle. (Compl., ¶¶ 8, 19.)

The Court finds that the allegations of the complaint are sufficient, at the pleading stage, to state a cause of action under Civil Code section 1793.2, subd. (d).

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Failure to Allege Sufficient Repair Attempts

Next, Defendant argues Plaintiff fails to meet the requirements set forth in *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205. In *Silvio*, the court held that the Song-Beverly Act calls for “reasonable number of attempts” and one alleged attempt does not meet the statutory threshold. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208-09.) Defendant contends Plaintiff alleges he brought the Vehicle in once for repair.

Reviewing the Complaint, Plaintiff alleges that “[t]he vehicle was delivered for repair of defects on or about March 24, 2025, at 2,484 miles, on or about July 9, 2025,

at 3,296 miles, on or about August 19, 2025, at 3,682 miles, and on or about December 22, 2025, at 4,791 miles. The defects have not been properly repaired or repaired in a reasonable number of attempts or amount of time." (Compl., ¶ 11.) Plaintiff properly alleges multiple repair attempts.

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Defendant is a Distributor, Negating the Second Cause of Action

Defendant argues

it is a distributor and not a manufacturer. (Mem. at pp. 8-10.) Defendant alleges in the complaint, however, that Defendant is a manufacturer. (Compl., ¶ 7.)

Defendant seeks to contradict this express allegation through judicial notice of the truth of a factual assertion in Defendant's Statement of Information filed with the Secretary of State. This is improper. "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents." (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400.)

Plaintiff has sufficiently alleged, at the pleading stage, that Defendant is a manufacturer.

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Failure to Repair Within 30 days as to Fourth Cause of Action

Defendant argues

that Plaintiff fails to allege facts to support the Fourth Cause of Action that Defendant failed to render repairs within 30 days. (Mem. at p. 10.) However, Plaintiff's Complaint includes in the Third Cause of Action that Defendant "failed to commence repairs within a reasonable time and/or to complete them within 30 days." (Compl., ¶ 37.) This allegation is realleged as to the Fourth Cause of Action in paragraph 42. Furthermore, Plaintiff alleges in the Fourth Cause of Action that Defendant "failed to repair the subject vehicle to conform to the applicable warranties within thirty days as evidenced by the service

history.” (Compl., ¶ 44.) Plaintiff has met the pleading requirement.

Accordingly, the motion for judgment on the pleadings is denied as to the First, Second, and Fourth Causes of Action.

Third Cause of Action

Last, Defendant argues that as a distributor, Defendant does not offer repairs, and thus, the Third Cause of Action raised against it fails. (Mem. at pp. 10-11.) Again, however, the allegations in the complaint are to the contrary. Plaintiff alleges that Defendant “engages in the business of providing service or repair to new or used consumer goods.” (Compl., ¶ 38.) This is sufficient to meet the pleading requirement for Civil Code section 1796.5.

Accordingly, the motion for judgment on the pleadings is denied.

Conclusion

The Court DENIES Defendant BMW of North America, LLC’s motion for judgment on the pleadings.

Moving Party is ORDERED to give notice.